

26PR00260 Estate of Janice Jones

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-08

Motion: Petition to Determine Succession to Primary Residence

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Tentative Ruling: Estate of Janice Jones

Case Number

26PR00260

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/08/2026 - 09:30

Nature of Proceedings

Petition to Determine Succession to Primary Residence

Tentative Ruling

Probate Notes:

The following must be submitted:

Amended Petition/Supplement to Petition (Form DE-310). Petition must list all heirs to the second degree on the table of consanguinity, with address and ages of any children (Prob. Code, § 13152).

Recorded Title. Since “a person may not transfer an estate or interest in property unless that person is the owner of the estate or interest in question or has the legal authority to act on that owner’s behalf” (Restatement (Fourth) of Property § 1.1 (2024), the Court must have evidence of how title is held:

The nemo dat principle is typically expressed in the full Latin phrase “nemo dat quod non habet,” which roughly translates to “one can only transfer what one owns” or, in the negative, “one cannot transfer property that one does not own.” It is sometimes called the “derivation principle” because the transferee’s interest derives from the transferor’s.

(Id., at cmnt. a. See also (Miller & Starr (2024) 3 Cal. Real Est. § 8:58 (4th ed.) § 8:58 [“It is axiomatic that a deed cannot convey more than is owned by the grantor. If a deed purports to convey property that is not owned by the grantor, it is ineffective to convey the property, and it is a “wild deed” that can have no effect on title of the person who holds real title to the property.”]; and Romero v. Shih (2024) 15 Cal.5th 680, 689 [citing same in Miller & Starr].)

Proof of Service of Notice (DE-120). A proof of service must be submitted showing all persons relatives to the second degree were served on the mandatory Judicial Council form, DE-120, with 15 days’ notice of the hearing date, and the notice was timely filed. (Prob. Code, § 13152, 1020 [all heirs/beneficiaries, guardian or conservator of the estate at time of death, executor named in will].) Any relatives to the second degree on the table of consanguinity must be served.

Further evidence. Allegations must be sufficient to establish a valid reason why Petitioner gets property. (Prob. Code, § 13152.) There also must be sufficient evidence to establish the facts alleged in the petition. This is usually accomplished by the submission of the 1) Certificate of Death for decedent, which must be submitted to prove date of death of Decedent; and 2) recorded deed showing how title to the real property is currently held. (See Evid. Code §412 [“If weaker and less satisfactory evidence is offered when it was within the power of the party to produce stronger and more satisfactory evidence, the evidence offered should be viewed with distrust.”].)

If the documents curing these deficiencies are not processed by noon on July 6, 2026, it is recommended that the matter be continued to a date set by the court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Denise M. Hippach

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